

24STCV05021 24STCV05021

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 24STCV05021 Hearing Date: September 23, 2026 Dept: 732

Majid Ghamami v. F. Bari Nejadpour., et al.

Wednesday, September 23, 2026

CASE NUMBER: 24STCV05021

OPPOSED

Plaintiff Majid

Ghamami's Motion to Vacate August 25, 2025 Order.

Facts:

This is an action for fraud and breach of contract. The Complaint alleges as follows. Plaintiff Majid Ghamami (Plaintiff) retained Defendants F. Bari Nejadpour, Nejadpour & Associates, and Law Offices of LA Law, Inc. (Defendants) to represent him as a defendant in a legal action, based on Defendants' representations that Plaintiff could pay a one-time fee of \$11,000, with victory in the lawsuit guaranteed or he could receive his money back. (Complaint ¶¶ 2–6.) Midway through the suit, Defendants urged Plaintiff to sign a retraction of the guarantee, but secured Plaintiff's signature only by further representations that Plaintiff was guaranteed to prevail. (Complaint ¶ 6.) But Plaintiff lost his suit, incurred a judgment in excess of \$40,000, and Defendants did not return the funds. (Complaint ¶¶ 7–8.)

Procedural History: Plaintiff

filed the Complaint on February 28, 2024, alleging seven causes of action:

1. Breach

of Contract

2.

Negligent Misrepresentation

3.

Breach of Covenant of Fair Dealing

4.

Breach of Fiduciary Duty

5.

Fraud

6.

Unfair Competition

7.

Declaratory Relief

On

December 19, 2024, this court granted Defendants' motion for judgment on the pleadings as to the first, third, fourth, and fifth causes of action, with leave to amend.

Plaintiff

filed a First Amended Complaint on January 16, 2025, removing the fourth cause of action for breach of fiduciary duty and adding a seventh cause of action for elder abuse, as follows:

1.

Breach of Contract

2.

Negligent Misrepresentation

3.

Breach of Covenant of Fair Dealing

4.

Fraud

5.

Unfair Competition

6.

Elder Abuse

7.

Declaratory Relief

On

July 24, 2025, this court granted Defendant's motion for judgment on the pleadings as to the first, second, third, and seventh causes of action for breach of contract, negligent misrepresentation, breach of covenant of fair dealing, and declaratory relief. The court denied the motion as to the fourth, fifth, and sixth causes of action for fraud, unfair competition, and elder abuse.

Trial

was held in this matter on August 25, 2025, with a verdict rendered for Defendants.

On

December 1, 2025, this court denied Defendants F. Bari Nejadpour and Law Offices of LA Law, Inc.'s motion for sanctions against Plaintiff Ghamami, and granted Defendants' motion for prevailing party attorney fees in the amount of \$6,445.00.

Plaintiff

Ghamami filed the present motion for relief from waiver (an actuality a motion to vacate the August 25, 2025 order of dismissal under Code of Civil Procedure § 473) on January 26, 2023.

Defendants

filed an opposition on September 10, 2026.

Analysis

I.

MOTION TO VACATE DISMISSAL

“The

court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) Such an application must include “a copy of the answer or other pleading proposed to be filed therein,” and must be made within a “reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) “The test of whether neglect was excusable is whether “ ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1128.)

Plaintiff

Majid Ghamami (“Plaintiff”) seeks to vacate the court’s order of August 25, 2025, finding in favor of Defendants F. Bari Nejadpour and Law Offices of LA Law, Inc. (“Defendants”) and dismissing Plaintiff’s claims. Plaintiff brings the motion on the grounds that he was in pro per during trial, and was deprived of the opportunity to obtain counsel because the court denied Plaintiff’s request to continue trial. (Motion at pp. 9–10.)

A

denial of a request for a continuance constitutes an abuse of discretion where the ruling is arbitrary, capricious, and contrary to the interests of justice under all the circumstances. [Citation] It cannot be held that litigants in all cases may demand a continuance by engaging counsel just prior to a trial date, where there is no showing of any necessity for any change of counsel, but a necessary substitution of counsel just prior to trial may justify the granting of a continuance, in some cases.

(Vann

v. Shilleh (1975) 54 Cal.App.3d 192, 196.)

Plaintiff

makes no showing of entitlement to a continuance as would justify vacating the August 25, 2025 order, and a narrative of the proceedings confirms that no such continuance was warranted.

The

parties appeared on August 11, 2025, for the final status conference, with Plaintiff represented by Ron Tavakoli, and trial was confirmed for August 25, 2025. (See 8/11/2025 Order.) Then, on August 14, 2025, Plaintiff (through counsel) filed an ex parte application for continuance of trial. The reason for the continuance was explained in the application: "On August 13, 2025 Plaintiff terminated the representation of Ron Tavakoli and is searching for new counsel." (8/14/2025 Ex Parte Application at p. 2, Tavakoli Decl. ¶ 3.) No justification for the change was provided. The minute order of August 18, 2025, indicates that the court denied the application for a continuance and that Plaintiff understood that he was now representing himself. (See 8/18/2025 Order.) The parties proceeded to trial, and toward a conclusion that was adverse to Plaintiff, as reflected in the August 25, 2025 order.

Plaintiff's

present motion offers scant basis for relief. His prior application for continuance at least informed the court of the basis for the request: Plaintiff wanted a new attorney, although he did not offer a reason why. At the hearing on the application, Plaintiff was informed that the trial would not be continued, and that if he proceeded to terminate his counsel, he would have to proceed in pro per. Plaintiff elected this latter option.

In

the present motion, Plaintiff offers no argument as to the necessity for a change in counsel or why the dismissal of his counsel was necessary, but instead devotes the motion largely to recapitulation of his substantive claims. This is insufficient. "[A] necessary substitution of counsel just prior to trial may justify the granting of a continuance, in some cases," but no relief is warranted when "there is no showing of any necessity for any change of counsel." (Vann, supra, 54 Cal.App.3d at p. 196.) No showing is made here, and no relief is therefore appropriate.

The

motion is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

majid

chamami.,

Plaintiffs

v.

F.BARI NEJADPOUR., et al.,

Defendants.

Case No.:

24STCV05021

Hearing Date: September 23, 2026

[TENTATIVE] RULING RE:

Plaintiff

Majid Ghamami's Motion to Vacate August 25, 2025 Order.

Plaintiff Majid Ghamami's Motion to

Vacate August 25, 2025 Order is DENIED.

Defendants to give notice.

Dated: September 23, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court